

FEDERAL REGULATIONS



Federal Regulations Guiding Health and Welfare

- Section 1915 (c) of the Social Security Act, mandates that waivers provide assurances to CMS that the state has necessary safeguards to protect the health and welfare of participants receiving services.
 - All waivers administered and operated by the Division of Long Term Living fall under this waiver authority.
 - Information related to the health and welfare of waiver participants are reported annually to CMS.
- 42 CFR § 441.302 (a) defines other necessary safeguards that protect the health and welfare of an individual.

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Revised Waiver Guidance

- An Informational Bulletin was released on March 12, 2014 entitled “Modifications to Quality Measures and Reporting in § 1915 (c) Home and Community Based Waivers.” This document:
 - Revised the guidance on quality assurances related to health and welfare in recognition of the importance of tracking services to prevent incidents of abuse, neglect, and exploitation;
 - Modified the assurance and sub-assurances related to health and welfare to allow for more extensive tracking of incidents.
 - Established the following assurance: “The state demonstrates it has designed and implemented an effective system for assuring waiver participants health and welfare.”

“Incident Management 101.” (2018) Retrieved from <https://www.Medicaid.gov/Medicaid/hcbs/downloads/.../incident-management-101.pdf>

Revised Guidance cont'd

- Four new sub-assurances were also created:
 - The state demonstrates on an ongoing basis that it identifies, addresses and seeks to prevent instances of abuse, neglect, exploitation and unexplained death.
 - The state demonstrates that an incident management system is in place that effectively resolves incidents and prevents further similar incidents to the extent possible.
 - The state policies and procedures for the use or prohibition of restrictive interventions (including restraints and seclusion) are followed.
 - The state establishes overall health care standards and monitors those standards based on the responsibility of the service provider as stated in the approved waiver.

“Incident Management 101.” (2018) Retrieved from <https://www.Medicaid.gov/Medicaid/hcbs/downloads/.../incident-management-101.pdf>

DIVISION OF LONG TERM LIVING'S GUIDELINES FOR CRITICAL INCIDENT REPORTING



What is a Critical Incident?

A Critical Incident is any actual or alleged event or situation that creates a significant risk of substantial or serious harm to the physical or mental health, safety or well-being of a DHHS waiver participant, Home Again participant or PRIME participant.



Critical Incident Reporting

State workers or Provider Case Managers have a duty to report critical incidents if they have reason to believe that a vulnerable adult or child is being abused, exploited or neglected.

State workers or Provider Case Managers must submit the critical incident in Phoenix **within 24 hours** or the **next business day** after discovery of the suspected or alleged abuse, neglect or exploitation.

Types of Critical Incidents

SCDHHS also monitors for other reportable incidents. These are defined as incidents involving death or serious harm to a beneficiary/participant. Reportable incidents include:

- **Abuse** (intentionally inflicting or allowing to be inflicted physical injury on a vulnerable adult or child by an act or failure to act. Deliberately subjecting a vulnerable adult or child to threats or harassment or other forms of intimidating behavior. Abuse can be physical, verbal, psychological or sexual)

Critical Incident Reporting In Phoenix

- **Neglect** (the failure or omission of a caregiver to provide the care, goods, or services necessary to maintain the health or safety of a vulnerable adult or child)
- **Exploitation** (causing or requiring a vulnerable adult or child to engage in activity or labor which is against the reasonable and rational wishes of the vulnerable adult or child. Includes the improper, unlawful, or unauthorized use of funds, assets, property, power of attorney, guardianship, or conservatorship of a vulnerable adult or child by someone for the profit or advantage of that person or another person)

Critical Incident Reporting In Phoenix

➤ Unexplained deaths

➤ **Falls** (resulting in death, injury requiring hospitalization, or injury that will result in permanent loss of function)

➤ **Traumatic injuries** (e.g. third degree burns over more than ten (10%) percent of the body that result in death, require hospitalization, or result in a loss of function)

Critical Incident Reporting In Phoenix

- **Unauthorized restraints** (both chemical and physical, that results in death, hospitalization, or loss of function in an institutional setting only)
- **Media related events** (any report that presents a potential or harmful characterization of the Department of Health and Human Services or any of its contracted entities that involves a DHHS waiver participant, Home Again participant or PRIME participant)
- **Elopement** (unexplained absence for more than 24 hours)

Critical Incident Tracking In Phoenix

Tracking of Critical Incidents by State Workers and Provider Case Managers:

Abuse, Neglect, Exploitation – at a minimum, **monthly** update from APS. To continue until APS provides a closure date or notifies of a report not accepted

Death, Falls, Traumatic injuries and **Unauthorized Restraint** – Single entry, no additional tracking required

- Central Office may request additional follow up

Critical Incident Tracking In Phoenix

Media-related events and Elopement – at a minimum, weekly update until resolved

NOTE: There will NOT be a notification in Phoenix that monitoring is due. Long Term Living Quality Assurance will contact the State Worker or Provider Case Manager if monitoring becomes delinquent.

Critical Incident Reporting In Phoenix

Process for Recording a Critical Incident:

- State worker or Provider Case Manager will pull the participant record and on the carousel select **Critical Incidents**.

The screenshot displays the Phoenix system interface. At the top is a red navigation bar with various icons. Below it is a grey bar containing the word "Dashboard" on the left and the user information "(9626932) lee h cannady" on the right. A red arrow points from the text "Critical Incidents" in the list above to the "Critical Incidents" button in the navigation bar. Below the navigation bar is a carousel with buttons for "Recurring Income", "Attendant Care Requests", and "Critical Incidents". The "Critical Incidents" button is highlighted. Below the carousel is a row of tabs: "Snapshot", "General Information", "Status Changes", "Services", "Complaints", and "Alerts". The "Snapshot" tab is selected. Below the tabs is a yellow bar labeled "Participant Overview". Under this bar are two boxes. The left box is labeled "Overall Status" and shows "active". The right box is labeled "Area (County)" and shows "Columbia (Lexington)".

Critical Incident Reporting In Phoenix

Process for Recording a Critical Incident:

Select New Critical Incident.

The screenshot displays the Phoenix Critical Incident Reporting system interface. At the top is a red navigation bar with icons for menu, logo, grid, people, calendar, list, bar chart, settings, mobile view, bug, help, and a user profile icon labeled 'FB'. Below this is a grey header bar with the text 'Critical Incidents' and the user profile '(9626932) lee h cannady'. A dark grey sidebar contains navigation buttons: Dashboard, Participant Information, Intake Workflows, Applications, Assessments, and Narratives. The main content area shows a table with columns: ID, Incident Type, Reported On, Incident Date, Status, Status Date, and Latest Service Coordination. A green button labeled 'New Critical Incident' is located at the bottom left of the table, with a red arrow pointing to it.

Critical Incident Reporting In Phoenix

Process for Recording a Critical Incident:

Select Program – Only programs with active applications for the participant will show.

Incident Information

☐ **Confidential?**

If checked, this critical incident will be hidden from everyone except for the incident reporter and Critical Incident Specialists.

Program **Required**

Community Choices

Critical Incident Type **Required**

Please select an incident type

Critical Incident Reporting In Phoenix

Select Critical Incident Type - Only one type can be chosen, see list below

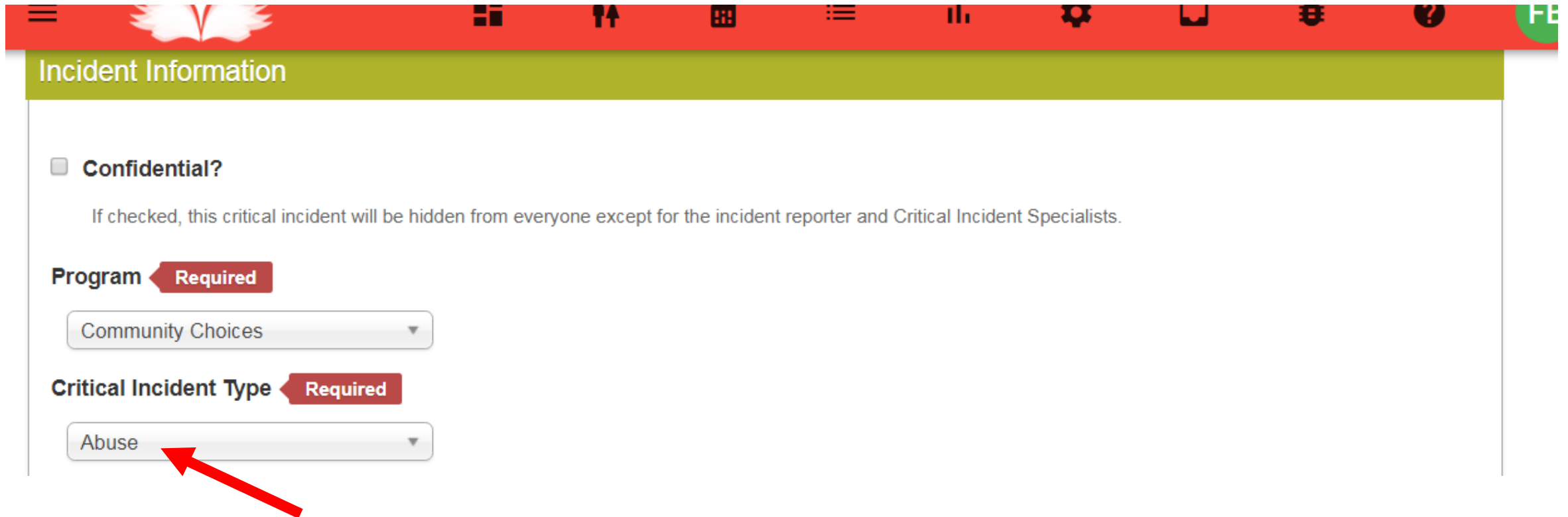
Critical Incident Types:

- Abuse
- Neglect
- Exploitation
- Fall Resulting in Death
- Fall Resulting in Hospitalization
- Fall Resulting in Permanent Loss of Function
- Traumatic Injury Resulting in Death
- Traumatic Injury Resulting in Hospitalization
- Traumatic Injury Resulting in Permanent Loss of Function
- Unauthorized Physical/Chemical Restraint Resulting in Death
- Unauthorized Physical/Chemical Restraint Resulting in Hospitalization
- Unauthorized Physical/Chemical Restraint Resulting in Permanent Loss of Function
- Unexplained Death
- Elopement (24 hours or More)
- Media-Related Event Resulting in Harmful/Potentially Harmful Portrayal of SC DHHS and/or a Contracted Entity of SC DHHS
- Infectious-Disease Outbreak (PRIME ONLY)
- Pressure Ulcers That Are Unstageable or Staged III & IV (PRIME ONLY)
- Emergency Room Visit (HOME AGAIN ONLY)
- Death Following Break-Down in 24 Hour Back-Up System (HOME AGAIN ONLY)
- Involvement with Criminal Justice System (HOME AGAIN ONLY)
- Medication Administration Error (HOME AGAIN ONLY)

Critical Incident Reporting In Phoenix

Process for Recording a Critical Incident:

Select Critical Incident Type -



Incident Information

☐ **Confidential?**

If checked, this critical incident will be hidden from everyone except for the incident reporter and Critical Incident Specialists.

Program Required

Community Choices

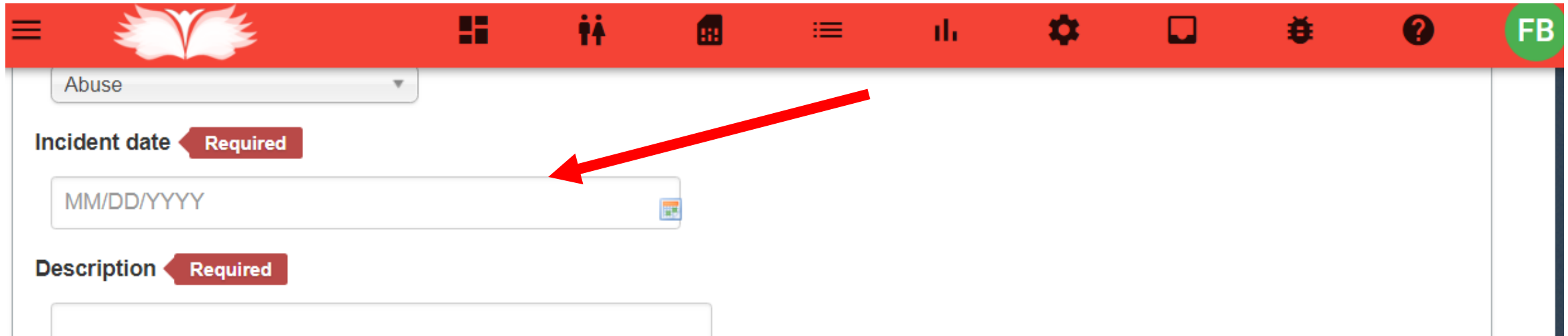
Critical Incident Type Required

Abuse

Critical Incident Reporting In Phoenix

Process for Recording a Critical Incident:

Incident Date – Date that the occurrence happened, not date that it is being reported



The screenshot shows the Phoenix Critical Incident Reporting interface. At the top is a red navigation bar with various icons and a user profile icon labeled 'FB'. Below the bar, a dropdown menu is set to 'Abuse'. The form contains two main sections: 'Incident date' and 'Description', both marked as 'Required' with red labels. The 'Incident date' field is a text input with the placeholder 'MM/DD/YYYY' and a calendar icon. A red arrow points to this field. The 'Description' field is a large text area below it.

Critical Incident Reporting In Phoenix

Process for Recording a Critical Incident:

Description – Mandatory. Provide details of the incident and all involved parties along with their relationship to the participant

The screenshot shows the Phoenix Critical Incident Reporting interface. At the top is a red navigation bar with various icons: a hamburger menu, a book icon, a grid icon, a people icon, a calendar icon, a list icon, a bar chart icon, a gear icon, a speech bubble icon, a bug icon, a question mark icon, and a green circular button labeled 'FB'. Below the navigation bar is a date input field with the placeholder 'MM/DD/YYYY'. The main section is titled 'Description' with a red 'Required' label. Below this is a large, empty text area for entering details. A red arrow points from the 'Required' label to the text area.

Critical Incident Reporting In Phoenix

Process for Recording a Critical Incident: • **Source of Information:** Source name, Relationship to participant and phone number.

Source of Information

Source Name

Source Relationship to Participant

Please select a relationship ▼

Information Source Phone Number

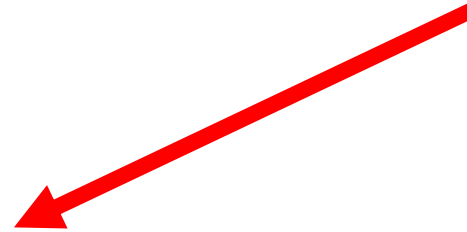
Phone Number

() - Ext.

Location

Home ▼ Specify

Notes



Critical Incident Reporting In Phoenix

Process for Recording a Critical Incident:

Then select save. Phoenix will automatically assign an Identification number to reported incident.

Critical Incidents (9626932) lee h cannady

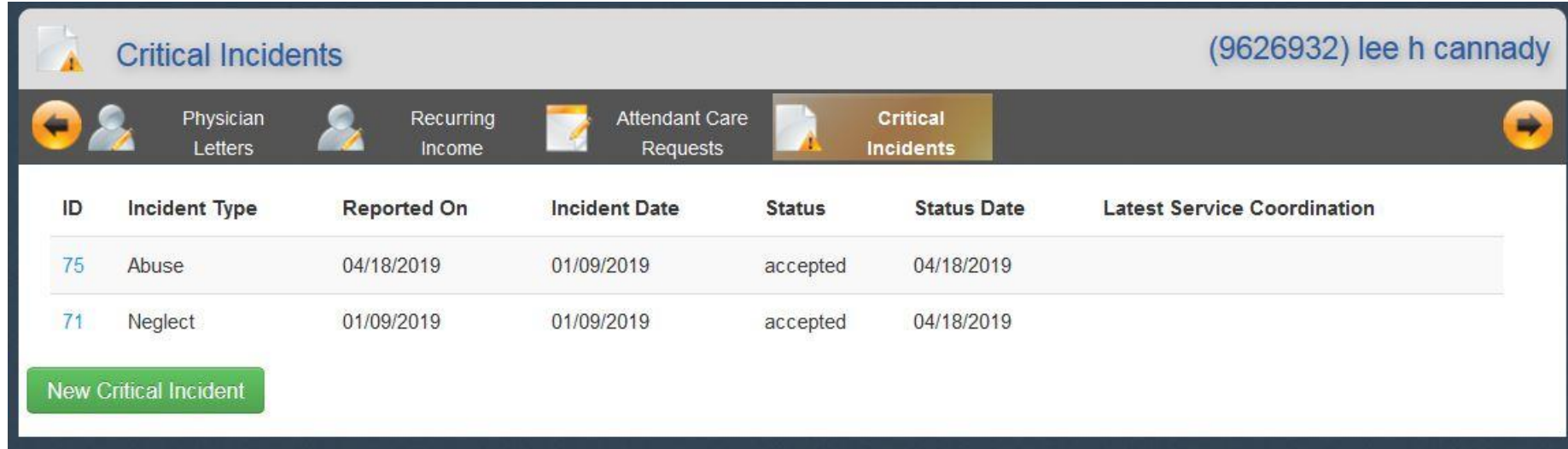
Dashboard Participant Information Intake Workflows Applications Assessments Narratives

ID	Incident Type	Reported On	Incident Date	Status	Status Date	Latest Service Coordination
71	Abuse	01/09/2019	01/09/2019	new	01/09/2019	

New Critical Incident

Critical Incident Monitoring in Phoenix

Following a service coordination attempt, enter pertinent information in the **critical incident itself** *rather than the participant narrative*. This input should occur whether the contact attempt is **successful** or **unsuccessful**



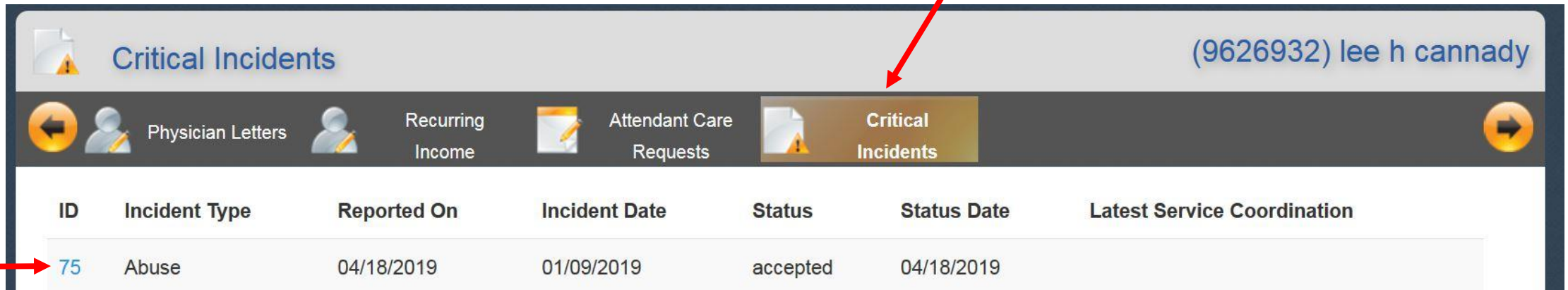
The screenshot shows a web application interface for "Critical Incidents". At the top, there is a header bar with a warning icon and the text "Critical Incidents" on the left, and the user information "(9626932) lee h cannady" on the right. Below the header is a navigation bar with several tabs: "Physician Letters", "Recurring Income", "Attendant Care Requests", and "Critical Incidents" (which is highlighted). To the left of the tabs is a back arrow icon, and to the right is a forward arrow icon. Below the navigation bar is a table with the following columns: "ID", "Incident Type", "Reported On", "Incident Date", "Status", "Status Date", and "Latest Service Coordination". The table contains two rows of data. Below the table is a green button labeled "New Critical Incident".

ID	Incident Type	Reported On	Incident Date	Status	Status Date	Latest Service Coordination
75	Abuse	04/18/2019	01/09/2019	accepted	04/18/2019	
71	Neglect	01/09/2019	01/09/2019	accepted	04/18/2019	

New Critical Incident

Critical Incident Monitoring in Phoenix

When entering a service coordination update, begin by selecting *Critical Incidents* from the PHX carousel. Then, select the incident being updated.



The screenshot shows the 'Critical Incidents' interface. At the top, there is a header bar with a document icon and the text 'Critical Incidents' on the left, and '(9626932) lee h cannady' on the right. Below the header is a carousel with five tabs: 'Physician Letters', 'Recurring Income', 'Attendant Care Requests', 'Critical Incidents' (which is highlighted), and an empty tab. Below the carousel is a table with the following columns: 'ID', 'Incident Type', 'Reported On', 'Incident Date', 'Status', 'Status Date', and 'Latest Service Coordination'. The table contains one row with the following data: ID 75, Incident Type Abuse, Reported On 04/18/2019, Incident Date 01/09/2019, Status accepted, Status Date 04/18/2019, and Latest Service Coordination.

ID	Incident Type	Reported On	Incident Date	Status	Status Date	Latest Service Coordination
75	Abuse	04/18/2019	01/09/2019	accepted	04/18/2019	

Critical Incident Monitoring in Phoenix

Next, select *Record a Service Coordination Attempt*

Description PC II reported noticing extensive bruising on participant's arms along with scrapes on participant's face. When asked how these injuries occurred, participant reported he and his son, Alex, argued about what to watch on TV. Alex reportedly then grabbed participant, threw him to the ground, and kicked the participant repeatedly. PC II made a report to APS and notified CM of this issue. Reported By Mark Collins Reported At 04/10/2019 10:09 AM Outside Agency Acceptance Date 01/11/2018	Source Phone Number Notes Individual is PC II for participant
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Required Periodic Service Coordination/Monitoring Date of Latest Service Coordination Attempt Date of Latest Successful Service Coordination Attempt View all service coordination attempts Record a service coordination attempt
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Critical Incident Monitoring in Phoenix

If case managers have successfully completed a service coordination, check-off the appropriate box.

Then, enter pertinent details in the *Additional Information* box, and *Save*.

If service coordination attempt was unsuccessful, leave the contact box unchecked, enter any pertinent details in the *Additional Information* box ("CM left voice mail for APS worker requesting returned call 4/17/19," for example) and *Save*.

Record a Service Coordination Attempt

Date of Attempt **Required**

04/17/2019

Contact Successful?

☒

Additional Information **Required**

CM made contact by telephone with Zeke Prescott, APS worker 4/17/19. Mr. Prescott reported participant's son, Alex, no longer lives in the participant's home, and that there has been no contact between them in the past 30 days. Mr. Prescott indicated APS will remain open presently. APS anticipates closing at the end of June 2019 if no further incidents occur.

Save Cancel

Critical Incident Compliance

- SCDHHS has defined sanctions for failure to comply with Critical Incident reporting/monitoring policy as follows:

1st action:

SCDHHS QA will send a reminder to CM, Provider agency and Area Office. The email will include a reminder for the CM/Provider Agency to contact the AA/LTCM for assistance with contacting APS if needed (refer to APS Policy-Chapter 5).

****If no response from CM within five (5) working days of the email, move to 2nd action.****

2nd action:

SCDHHS QA will send a letter to CM & Provider Agency notifying CM/Provider Agency has five (5) working days from the date letter sent to document service coordination/follow-up with APS staff before 3rd action is taken.

3rd action:

CM/Provider Agency will not receive new referrals for sixty (60) days.

Critical Incident Compliance

- In addition, SCDHHS has defined sanctions for failure to create a critical incident entry:
 - Failure to create a critical incident in Phoenix 1st offense:
 - A letter will be sent to the CM/Provider Agency by Central Office staff after area office staff creates a complaint regarding the CM.
 - Failure to file a critical incident in Phoenix 2nd offense:
 - CM/Provider Agency will not receive new referrals for sixty (60) days.

Frequently Asked Questions

- What is a Critical Incident?
 - A Critical Incident is any actual or alleged event or situation that creates a significant risk of substantial or serious harm to the physical or mental health, safety or well-being of a DHHS waiver participant, Home Again participant or PRIME participant.
- Are APS referrals for abuse, neglect, and exploitation considered a Critical Incident.
 - Yes. All referrals made related to abuse, neglect and exploitation must be reported as a critical incident.
- Am I required to submit and monitor a Critical Incident that I did not refer or witness?
 - Yes. Once a case manager is made aware of the referral, a critical incident report must be submitted. SCDHHS is responsible for reporting to the Centers for Medicare and Medicaid Services (CMS) all critical incidents involving our participants.

Frequently Asked Questions

- How often am I required to monitor a Critical Incident?
 - It depends on the type of Critical Incident being reported. Reports of abuse, neglect, and exploitation are required to be monitored monthly. However, elopements are required to be monitored weekly. Please refer to P&P 05.80 for a complete listing.
- Am I required to report Critical Incidents on individuals not enrolled in a waiver?
 - No. Critical Incidents are to be reported on participants active in one of our waivers (Community Choices, HIV/AIDS or Mechanical Vent).
- What should I do if I suspect abuse, neglect, or exploitation of a non-waiver participant?
 - Report it! You are considered a mandated reporter and must report. Document pertinent information in the individual's narrative in Phoenix.

Frequently Asked Questions

- If a participant goes to the ER after a fall, is this reportable?
 - No. Only in-patient admissions are reportable. Falls that did not result in hospitalization are captured during the annual re-evaluation assessment.
- Am I required to report a critical incident on a child enrolled in the Children's Personal Care program?